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**IN THE FOURTH JUDICIAL DISTRICT COURT  
IN AND FOR UTAH COUNTY, STATE OF UTAH**

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STATE OF UTAH,

Plaintiff,

vs.

TYLER JAMES ROBINSON,

Defendant.

**RULING AND ORDER GRANTING  
THE STATE'S MOTION TO  
CLARIFY COURT'S PRE-TRIAL  
AND TRIAL PUBLICITY ORDER**

Case No. 251403576  
Judge Tony F. Graf, Jr.

The court issued a Protection Order Regarding Pre-Trial and Trial Publicity in this case. (Dkt. 23). The order prohibits attorneys who are associated with the prosecution and defense of this case from

intentionally, knowingly, or recklessly permit[ing] a witness, investigator, consultant, staff member, or other member of the prosecution or defense team to make extrajudicial statements which, if made by the lawyer, would violate Rule 3.6. To that end, lawyers participating in the investigation or litigation of this case shall inform all *witnesses*, investigators, consultants, staff members, or other members of the prosecution or defense teams about the prohibitions contained in this order.

(Dkt. 23) (emphasis added).

The State moves to amend or clarify the court's use of the word "witness" as used in the publicity order because it is vague, ambiguous, and overbroad. (Dkts. 167, 204). The State asserts that there are over 3,000 lay witnesses of the alleged homicide. The State does not know if it must inform each potential and possible witness of the prohibitions in the order or whether the order applies only to witnesses who are members of the attorneys' teams, such as investigators or experts.

Due to the potential confusion, the court grants the State's motion and offers the following clarification: The word "witness" as used in the order applies to all witnesses who are part of the

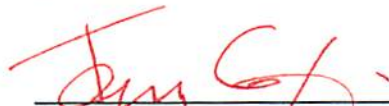
prosecution and defense teams. This includes any witness, including lay witnesses, whom the prosecution or defense has a good faith belief will be called to testify at a hearing or trial.

The court also clarifies that the publicity order, as written, regulates the behavior of attorneys who are associated with the defense team or the Utah County Attorney's Office. It requires the attorneys to abide by Rule 3.6 and, in order to deter non-attorneys from making prejudicial statements, requires the attorneys to *inform* witnesses about the prohibitions in the publicity order. Informing witnesses about the prohibitions in the publicity order is a necessary step toward not intentionally, knowingly, or recklessly permitting witnesses from making prejudicial statements. The publicity order does not regulate the behavior of any person who is not an attorney associated with this case.

This is the order of the court for the matters addressed herein.<sup>1</sup>

Dated this 15<sup>th</sup> day of December, 2025.

BY THE COURT:

  
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Judge Tony F. Graf, Jr.  
District Court Judge



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<sup>1</sup> Defense counsel represents that they intend to file a motion to amend the publicity order. The court will address defense counsel's motion when it is filed and briefing is completed.

**CERTIFICATE OF NOTIFICATION**

I certify that a copy of the attached document was sent to the following people for case 251403576 by the method and on the date specified.

MANUAL EMAIL: KATHRYN NESTER KATHY@NESTERLEWIS.COM

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12/15/2025

/s/ TREENA HANSEN

Date: \_\_\_\_\_

\_\_\_\_\_  
Signature